

Lakshamma vs Lakshmi on 20 December, 2024

KABC010130552015

(IN O.S.No.5084/2015)

KABC010083232019

IN O.S.No. 1962/2019

(P & S.C.No.222/2015)

IN THE COURT OF THE XLI ADDL.CITY CIVIL AND
SESSIONS JUDGE : AT BANGALORE [CCH-42]

:PRESENT:

SMT. SUMANGALA CHAKALABBI, B.A. LL.B. (Hons.), LL.M.
XLI Addl. City Civil and Sessions Judge,
Bengaluru

Dated this the 20th day of December 2024

O.S.No.5084/2015

PLAINTIFF : Smt. Lakshamma,
W/o Chinna Swamy,
No.16, 1st floor, 4th Cross,
Dwarakanagar,
Chikka Banavara,
Bengaluru.

(By Pleader Sri. Ranganath G.K.,)
O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

2

V/s.

DEFENDANTS : 1. Smt. Lakshmi,
W/o Chinna Swamy,
Aged about 40 years,
Konasale Village,
Koppa Hobli,
Maddur Taluk,

Mandya District.

2. Office of the Commissioner of
Service Tax,
Bangalore Service Tax Commissionerate,
TTMC/BMTC Building,
Old Airport road, Domlur,
Bengaluru - 560 071.

(D1- By Pleader Sri M.N.S.
D2 By Pleader Sri B.R.D.)

Date of Institution of the Suit: 11.06.2015

Nature of the suit
(Suit on Pronote, suit for
declaration & possession, suit
for injunction) Suit for Declaration and
Injunction

Date of commencement of
recording of evidence: 02.06.2022

Date on which the Judgment
was pronounced: 20.12.2024

3

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

Total Duration:	Year/s	Month/s	Day/s
	09	06	09

O.S.No. 1962/2019
(P & S.C.No.222/2015)

PETITIONER/
PLAINTIFF: Smt. Lakshmi @ Lakshmamma,
W/o Late Chinna Swamy,
Aged about 37 years,
R/at Konasale Village,
Koppa Hobli,
Maddur Taluk,
Mandya District.
(Rep. By Sri. Sathyaraj M.N., Advocate)

V/s.

RESPONDENT/
DEFENDANTS: 1. Commissioner of Service Tax,
Bangalore Service Tax Commissionerate,
TTMC/BMTC Building,
Old Airport road, Domlur,
Bengaluru - 560 071.

2. The Manager,
The Indian Bank,
S.S.I. Branch Peenya
130, 100 feet road
Near Jalahalli Cross,
Bengaluru - 560 057.

3. Smt. Lakshmamma,
D/o Doddavenkataiah,
Major,
Koppa Hobli,

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

4

Gattahalli,
Maddur Taluk,
Mandya District.

(D1 -by Sri BSP, D2 -
By Sri KSK, D3 - by
Sri GKR - Advocates)

COMMON JUDGMENT

The Plaintiff has filed this suit against the
defendants for the following reliefs:

(a) To declare that the plaintiff is entitled
for service benefits available as per rules and
regulations available after death of her
husband Sri Chinna Swamy, who was
employee with the 2nd defendant ;

(b) To direct the 2nd defendant to pay all
the service benefits, whatever the service
benefits availed to pay in favour of the
plaintiff ;

(c) To direct the defendants to pay FD
amount kept in Indian Bank, Peenya

Industrial Branch in respect of late Sri Chinna

Swamy, Account bearing No.6175509978;

(d) To direct to pay the account balance

amount in favour of plaintiff in S.B. A/c

No.605608886 in Indian Bank, Peenya

Industrial Branch.

2. The case of the plaintiff in brief is that, the plaintiff is the legally wedded wife of Sri Chinna Swamy, who was working as Havaladar in the Office of the 2 nd defendant.

2.1 The marriage between the plaintiff and said Sri Chinna Swamy was solemnized on 16.09.2013 at Mallikarjuna Temple, Halathi Kshetra, Nagamangala Taluk, Mandya District as per the Hindu Rites and Customs.

2.2 After the marriage they lived together as husband and wife till his death but the petitioner had no issues within the wedlock.

2.3 Sri Chinna Swamy had married the plaintiff after his first wife had deserted him. Sri Chinna Swamy had no issues even from his wedlock with his first wife.

The 1st wife had filed a suit against Sri Chinna Swamy for recovery of maintenance before the Hon'ble Civil Judge, Junior Division and JMFC, Maddur and the Court had awarded monthly maintenance of Rs.2,000/- per month.

2.4 It is her further case that the 1st wife had deserted and neglected Sri Chinna Swamy and as such there were no body to take care of Sri Chinna Swamy and even his parents were no more. In such situation, with the intervention of some well wishers and family members, the marriage of the plaintiff with Sri Chinna Swamy was performed on 16.09.2013 at her native place. Sri Chinna Swamy was also suffering from heart disease and respiratory problems. Ultimately he died on 26.10.2014 due to respiratory problem at Saptagiri Hospital, Hesaraghatta main road, Bengaluru and when the plaintiff

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

7

was busy performing funeral ceremonies, the 1st defendant came with rowdy elements and forcibly collected all the relevant documents belonging to her husband from her.

2.5 She has further pleaded that since the original documents are in possession of the 1st defendant, the 1st defendant may be directed to produce those documents.

2.6 The plaintiff has further pleaded that she has no independent source of income, and during the lifetime of

Chinnaswamy she was purely depending upon the income of Sri Chinna Swamy and on his death, she has approached the 2nd defendant to pay her the service benefits of deceased Sri Chinna Swamy and in this regard she has issued a legal notice dated 17.12.2014. On receipt of said notice, the 2nd defendant has issued a reply notice directing her to obtain necessary orders from the Court. Sri Chinna Swamy during his lifetime had kept F.D. amount of Rs.2 lakhs in Indian Bank, Peenya Industrial branch, Bengaluru, without specifying any person as his

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

8

nominee. When the plaintiff had approached the said bank, the bank issued endorsement to obtain Order from the Court. Sri Chinna Swamy was owning S.B. Account without mentioning any person as his nominee. Therefore, in this behalf, the plaintiff has filed the above suit.

3. In response to the suit summons, the defendant No.1 appeared and filed written statement denying the relationship of Sri Chinna Swamy with the plaintiff and called upon the plaintiff to prove the same.

3.1 The 1st defendant has denied all the averments with reference to the solemnization of the marriage of the plaintiff with deceased Sri Chinna Swamy and has further contended that the documents produced by the plaintiff in

proof of her marriage are all manipulated to suit the case of the plaintiff.

3.2 The 1st defendant has denied the other averments regarding her desertion.

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

9

3.2 The 1st defendant has admitted the date of death of Sri Chinna Swamy on 26.10.2014 and further contended that she is legally wedded wife of said Sri Chinna Swamy and her marriage with Sri Chinna Swamy was performed on 30.05.1991 at Venkateshwara Kalyana Mantapa, according to Hindu customs and rites and subsequent to their marriage, some dispute arose between the parties and as such the 1st defendant filed Petition under Section 125 Cr.P.C. and registered a C.Misc.No.208/2010 before Civil Judge, Maddur. Later on the Court awarded interim maintenance of Rs.2,000/- on 23.02.2013. The said petition was pending till the death of Sri Chinna Swamy and on 09.01.2015 the learned counsel for the defendant in the said case reported the death of Sri Chinna Swamy and accordingly the petition was dismissed as abated. Hence, the 1st defendant sought to dismiss the suit.

3.3 The defendant No.2/ the office of the Commissioner of Service Tax in its written-statement has

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

10

disputed the relationship of plaintiff and Sri Chinna Swamy and contended that during the lifetime of 1st wife, the plaintiff will not get the status of wife of Sri Chinna Swamy; further contended that the invitation card and the photographs produced by the plaintiff will not establish the relationship of marriage and denied the averments of the plaint and sought for dismissal of the suit.

4. On the above pleadings of the parties, the following issues have been framed:

1. Whether the plaintiff proves that she is the legally wedded wife of deceased Chinnaswamy?
2. Whether the Plaintiff further proves that she is entitled for service benefits of Late. Chinnaswamy out of his employment with Defendant No. 2?
3. Whether the Plaintiff is entitled for an order to pay fixed deposit amount kept in Indian Bank, Peenaya Industrial Branch in the account of the Late Chinnaswamy?

11

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

4. Whether the Plaintiff is entitled for payment of balance at credit in the said Indian Bank pertaining to Late. Chinnaswamy?
5. Whether the Defendants proves that the suit is not maintainable for want of notice U/s 80 Civil P.C.

6. Whether the plaintiff is entitled to the reliefs sought for?

7. What decree or order?

Additional issues framed on 04.02.2023

1. Whether the Defendant No.1 proves that she is the legally wedded wife of Late Chinnaswamy.

2. Whether the Plaintiff proves that suit is properly valued.

3. Whether the Plaintiff proves that court fee paid is proper.

5. In order to prove the case of the plaintiff, the plaintiff examined herself as PW.1 and also examined her neighbours by name Sri Ananta N. Hegde as PW.2 and

12

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

Sri Veerabhadraiah N.E. as PW.3 got marked documents at Ex.P.1 to P.28 and closed her side.

5.1 On 29.10.2024, the learned counsel for the defendant No.1 has filed a Memo to treat the evidence of defendant No.1 in O.S.No. 1962/2019 as part of evidence in O.S.5084/2015. Said Memo was allowed and thereafter the matter was posted for arguments. Similar memo was filed by the counsel for defendant No.3 on 11.11.2024.

6. Heard the arguments of both sides. Perused

the records.

7. Before giving findings on the above issues, it is pertinent to note at this stage that, the defendant No.1 in this case - Smt. Lakshmi, wife of deceased Chinnaswamy, who is residing at Konasale Village, Koppa Hobli, Maddur Taluk, Mandya District, filed a

13

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

Petition to prove herself as the legally wedded wife of Chinnaswamy in P&SC.222/2015 on 07.07.2015.

8. The case of the petitioner in P&SC 222/2015 in brief is under:

8.1 This petition is filed by the petitioner under Section 372 of Indian Succession Act, 1925 for the issue of Succession Certificate in favour of the petitioner in respect of death relief claim of deceased Sri Chinnaswamy and the amount deposited 2nd respondent - The Indian Bank and the LIC of India under Policy No.611360079.

8.2 It is the case of the petitioner that she is the legally wedded wife of deceased Sri Chinna Swamy who was working as Havaladar in the Office of the 2nd defendant. He died on 26.10.2014 leaving behind the petitioner as the only legal heir to succeed to his estate.

O.S. No.5084/2015,
O.S. No.1962/2019,

8.3 It is the further case of the petitioner that her marriage with Sri Chinna Swamy was performed on 30.05.1991 at Venkateshwara Kalyana Mantapa, Maddur, according to Hindu Customs and Rites.

8.4 She has further pleaded that subsequent to their marriage, some dispute arose between them and as such she filed Petition under Section 125 Cr.P.C. against her husband and registered C.Misc.No.208/2010 before Civil Judge, Maddur. Later on the said Court awarded interim maintenance of Rs.2,000/- on 23.02.2013. The said petition was pending till the death of Sri Chinna Swamy and on 09.01.2015 the learned counsel for the petitioner reported the death of her husband i.e. Sri Chinna Swamy on 26.10.2014, who was the respondent in the case and accordingly the petition was dismissed as abated.

8.5 It is further submitted that after the death of her husband she approached the respondent Nos.1 and 2 for

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

15

settlement of family pension and to pay the balance in the account of deceased Sri Chinna Swamy.

8.6 It is further submitted that deceased Sri Chinna Swamy had admitted the relationship between the

petitioner and himself in the case filed by her for maintenance.

8.7 She has denied that the 3rd respondent is the wife of deceased Sri Chinna Swamy and further denied that having no manner of right, title and interest she has filed an application for settlement before the respondent Nos. 1 and 2.

8.8 The petitioner further submits that the 3rd respondent is utter stranger and she cannot claim the status of wife as the petitioner is still alive and as no divorce decree is passed dissolving the marriage between the petitioner and late Sri Chinna Swamy and as such the 3rd respondent has no manner of right to claim any benefits in the capacity of wife of late Sri Chinna Swamy.

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

16

According to the petitioner in P.&SC, the cause of action for the petition arose on the death of late Sri Chinna Swamy i.e. on 26.10.2014, and when the 1st and 2nd respondents issued endorsements to obtain Succession Certificate.

9. Further, it is to be noted that the plaintiff in O.S.NO. 5084/2015 has appeared in P&SC 222/2015 as respondent No.3 and the defendant No.2 in O.S.NO. 5084/2015 has appeared in the petition as respondent No.1 and have filed their separate objections to the petition. Therefore, the objections are to be taken in

consideration to decide the present suit.

9.1 The 1st respondent has contended that the petition filed by the petitioner is not maintainable either in law or on fact and the same is liable to be dismissed in limine and that the petitioner is not entitled for any relief as the 3rd respondent has already filed a suit for similar relief in O.S.No. 5084/2015 and the 3rd respondent is the legally wedded wife of late Chinnaswamy. The averment that the

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

17

petitioner is declared as wife of late Chinnaswamy is not within the knowledge of this respondent and there is no cause of action for the petitioner to file this petition and if the petition is dismissed no harm would be caused to the petitioner as she is not the wife of late Chinnaswamy and on the other hand great hardship would be caused to this respondent. Hence, prayed to dismiss the petition.

9.2 The 2nd respondent (The Manager Indian Bank, S.S.I. Branch, m Peenya, Bengaluru) has filed objections on 11.09.2015 by contending that the 2nd respondent had no knowledge regarding the relationship of the petitioner with deceased Chinnaswamy and also the litigation between them.

9.3 The 2nd respondent has further submitted that deceased Chinnaswamy during his lifetime had opened

S.B. Account bearing No.605608886 in the 2nd respondent

bank, Peenya Branch and he was operating the said

18

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

account and as on 21.08.2015 Rs.1,10,151/- is available in
the said account.

9.4 The 2nd respondent has further stated that
deceased Chinnaswamy had also deposited a sum of Rs.2
Lakhs in RIP A/c No.6175509978 and the same is lying in
the account with accrued interest and the bank is ready to
release the afore said amounts on production fo Succession
Certificate.

9.5 The 3rd respondent (the plaintiff in O.S.NO.
5084/2015) has filed the written-statement which runs as
follows:

The 3rd respondent has contended that the petition
filed by the petitioner is not maintainable either in law or
on fact and the same is liable to be dismissed in limine.

She has further submitted that she is the legally
wedded wife of Sri Chinna Swamy, and she got married on
16.09.2013 at Mandya District and her husband was
deserted by his first wife.

19

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

The 3rd respondent has further submitted that the petitioner is contesting the suit filed by her in O.S.No. 5084/2015. With these allegations she has prayed to dismiss the petition.

10. Thereafter, the matter was posted for evidence. During evidence, the petitioner got herself examined as PW.1 and got marked documents at Ex.P.1 to Ex.P.22.

10.1 On 23.01.2018, the learned counsel for the respondent No.3 has filed a Memo praying this court to club this petition with O.S.No. 5084/2015 as both cases are arising out of same cause of action in the interest of justice. However, no orders were passed on the said Memo. Subsequently, the counsel for plaintiff in O.S.No.5084/2015 filed a Memo to club the suit bearing O.S.No.5084/2015 with O.S.No.1962/2019. The said Memo contained an endorsement of defendant No.1 and 2 stating no objections to the same. Thereafter, O.S.No.5084/2015 was clubbed with O.S.No.1962/2019
O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

20

by order dated 04.09.2024.

10.2 The learned counsel for defendant No.3 has filed a Memo on 11.11.2024 praying to adopt the evidence deposed in O.S.No. 5084/2015 as PW.s 1 to 3 and to consider the exhibits produced on her behalf to meet the ends of justice.

10.3 As per order sheet in P&SC 222/2015 dated 06.03.2019, the petition is converted to Original Suit and the Original Suit was filed on 11.03.2019 before this Court in O.S.No. 1962/2019. Hence, both the matters are clubbed together for proper adjudication of the matters.

11. The only point that arises for my consideration in O.S.No. 1962/2015 (P&SC 222/2015) is:

"1. Whether the petitioner in (P&SC 222/2015) i.e. plaintiff in O.S.No. 1962/2019 is entitled for the relief sought?"

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

21

12. My findings to the above issues are as under:

Issue No.1 - In the Negative

Issue No.2 - Does not arise for consideration

Issue No.3 - Does not arise for consideration

Issue No.4 - Does not arise for consideration

Issue No.5 - In the Negative

Issue No.6 - In the Negative

Addl.Issue No.1 - In the Affirmative

Addl.Issue No.2 - In the Affirmative

Addl.Issue No.3 - In the Affirmative

Point No.1

(in P&SC 222/2015

i.e. O.S.No. 1962/2015) _ In the Affirmative

Issue No.6 - As per the final order
for the following:

REASONS

13. Issue Nos.1, 2, 3, 4, 6 and additional Issue
No.1 and Point No.1 for consideration in P&SC
222/2015 i.e. O.S.No. 1962/2015 :- It is the specific
O.S. No.5084/2015,
O.S. No.1962/2019,
22 (P & S.C. No.222/2015)

case of the plaintiff that she is the legally wedded wife of
deceased Sri Chinna Swamy and their marriage was
solemnized on 16.09.2013 at Mallikarjuna Temple, Halti
Kshetra, Nagamangala, Mandya District as per Hindu Rites
and Customs.

14. The plaintiff in her plaint admits that the deceased
Sri Chinna Swamy had earlier married the 1st defendant
and 1st defendant had deserted Sri Chinna Swamy; later on
the first defendant had instituted Crl.Mis.Petition before
Maddur Court for maintenance. The plaint averments
made in para nos.5 and 6 disclose a clear admission of the
marital relationship of deceased Sri Chinna Swamy with
the 1st defendant. The Hon ble Supreme Court in the case
of Narayan Bhagwant Rao Bosabhi Balajiwale Vs. Gopal
Binayak Gosai AIR 1960 SC 100 has held that „an
admission is the best evidence that an opposing party can
rely on and though not conclusive is decisive of the matter,
O.S. No.5084/2015,
O.S. No.1962/2019,

unless successfully withdrawn or proved erroneous.

Further in Raja Gounder and Others vs M. Sengodan and Others the Hon'ble Supreme Court has observed that, " Admission is a conscious and deliberate act and not something that could be inferred. An admission could be a positive act of acknowledgement or confession. To constitute an admission, one of the requirements is a voluntary acknowledgement through a statement of the existence of certain facts during the judicial or quasi-judicial proceedings, which conclude as true or valid the allegations made in the proceedings or in the notice. The formal act of acknowledgement during the proceedings waives or dispenses with the production of evidence by the contesting party. The assertion of the plaintiff regarding the marriage of the 1st defendant with Sri Chinna Swamy is established from the certified copy of the Petition filed under Section 125 Cr.P.C. before Maddur Court in C.Mis.No.208/2010 and the certified copy of the order

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

sheet in Crl.Mis.No.208/2010 produced at Ex.P.27 and P.28. Thus in the light of the judicial admission of the plaintiff the requirement of proof of the marriage of the

first defendant with Late Chinnaswamy need not be gone into.

15. However, it is her case that after the desertion of the 1st wife, late Sri Chinna Swamy was afflicted with several ailments due to which the well-wishers of the family of Chinnaswamy and relatives performed the marriage of the plaintiff with Sri Chinna Swamy on 16.09.2013 at her native place. After having admitted the relationship between the 1st defendant and Sri Chinna Swamy, whether the plaintiff can still assert that she is the legally wedded wife of deceased Sri Chinna Swamy is the question before the court. In the first place it has to be examined whether the plaintiff has proved the factum of solemnization of marriage between herself and Chinnaswamy.

25

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

16. The Apex Court in Dolly Rani v. Manish Kumar Chanchal[2024] 5 S.C.R. 510 , has held that the registration of Hindu marriages under Section 8 is only to facilitate the proof of a Hindu marriage but for that, there has to be a Hindu marriage in accordance with Section 7 of the Act inasmuch as there must be a marriage ceremony which has taken place between the parties in accordance with the said provision. Although the parties may have

complied with the requisite conditions for a valid Hindu marriage as per Section 5 of the Act in the absence of there being a "Hindu marriage" in accordance with Section 7 of the Act, i.e., solemnization of such a marriage, there would be no Hindu marriage in the eye of law and unless the parties have undergone such ceremony, there would be no Hindu marriage according to Section 7 of the (Hindu Marriage) Act and a mere issuance of a certificate by an entity in the absence of the requisite ceremonies having been performed, would neither confirm any marital status

26

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

to the parties nor establish a marriage under Hindu law. In the above case the plaintiff has sought for the declaration of her right to declare that she is entitled for the service benefits on account of her marital relationship with the deceased Chinnaswamy. Therefore it is obligatory on part of the plaintiff to plead and prove the factum of marriage as required under Section 7 of the Hindu Marriage Act, 1955. When the pleadings are examined in that perspective it is evident that the plaintiff has merely pleaded that her marriage with deceased Chinnaswamy was solemnized on 16.9.2013. The plaintiff has not pleaded the essentials ceremonies of her marriage and how the marriage was solemnized as per their customs and rituals.

17. The plaintiff in support of her case has produced Ex.P.1 to P.28. The plaintiff has heavily relied upon the wedding photo produced at Ex.P.1 and the wedding invitation card at Ex.P.2. The plaintiff has
O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

27

produced the original deposit receipt issued by Indian bank and the extract of land and building tax register for the year 2012-13 issued in the name of deceased Sri Chinna Swamy at Ex.P.8 and P.9. Similarly, she has produced the receipt issued by Grama Panchayath on 13.05.2015, residence certificate at Ex.P.10 and P.11. Certificate of relationship issued by Grama Panchayath at Ex.P.12, original ration card at Ex.P.13, rent agreement at Ex.P.14, original sale deed executed in favour of Sri Chinna Swamy on 30.08.2011 at Ex.P.16, original adhar card of PW.1 at Ex.P.17, medical bill and prescription at Ex.P.18 to P.24 and letter communications between the plaintiff and the 2nd defendant at Ex.P.4, 5, 6, 25 and 26.

18. PW.1 in her cross-examination has clearly admitted she has not produced the negatives of photographs Ex.P.1 and she has further admitted that there are no Officers of the Temple, where her marriage was
O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

28

performed with Sri Chinna Swamy. She has admitted that none of the relatives of Sri Chinna Swamy had attended the marriage ceremony and there was no official Priest to solemnize the marriage between the plaintiff and Sri Chinna Swamy.

19. PW.1 initially admitted that Ex.P.1 has been created to suit her case, later on she has denied the same. PW.1 has further stated that Ex.P.1 does not disclose the name of the printer and his address. She has pleaded ignorance regarding the name of the printer and publisher of the wedding card at Ex.P2 . She has also pleaded ignorance if the elders of Sri Chinna Swamy were invited for the wedding. She has admitted that marriage of Sri Chinna Swamy was performed with 1st defendant on 13.05.1991. PW.1 has stated that she came to know about the marriage between the plaintiff and the 1st defendant after her marriage with Sri Chinna Swamy.

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

29

20. PW.2 and 3 are the neighbours of the plaintiff. They have deposed in their examination-in-chief that the plaintiff is the legally wedded wife of Sri Chinna Swamy and their marriage was performed on 16.09.2013 as per Hindu Rites and Customs. The neighbours of the plaintiff

cannot claim to have special knowledge regarding the relationship of plaintiff with Sri Chinna Swamy. None of the family members of the plaintiff or deceased Sri Chinna Swamy are examined before the court to prove the relationship of marriage between herself and Sri Chinna Swamy.

21. The evidence of PWs.2 and 3 do not establish the relationship of marriage between the plaintiff and Sri Chinna Swamy. Merely because the plaintiff is possessing certain documents belonging to Sri Chinna Swamy, she cannot claim that she is legally wedded wife of Sri Chinna Swamy. Considering the evidence on record, it is evident at

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

30

Ex.P.1, the wedding photograph and invitation card at

Ex.P.2 have not been duly proved for the following reasons:

1. The plaintiff has failed to prove that the marriage was within the knowledge of the relatives of late Sri Chinna Swamy;
2. No family members of Sri Chinna Swamy was invited for the marriage ;
3. No photographs are produced to show that involvement of the family members of Sri Chinna Swamy in the marriage ;
4. No evidence to show that wedding card was

distributed to the relatives of plaintiff and Sri
Chinna Swamy.

22. The residence certificate and certificate of
relationship issued by Grama Panchayath at Ex.P11 and
Ex.P12 disclose that Ex.P.11 was issued on 09.12.2014
and Ex.P.12 was issued on 21.11.2014, Ex.P.13 was
O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

31

issued on 06.02.2020. All these documents refer to the
period anterior to the date of institution of the suit and
after the death of Sri Chinna Swamy. No documents are
produced that at an undisputed point of time, the plaintiff
and deceased Sri Chinna Swamy were legally married as
per Hindu Rites and Customs. The service records
summoned by the first defendant from the office of second
defendant reveal that the name of first defendant was
entered as nominee in the service records of Late
Chinnaswamy. The plaintiff has not disputed the entries in
the service records of Late Chinnaswamy. If Late
Chinnaswamy had got married with the plaintiff, then
certainly, he would have got her name entered in his
service records. It is significant to note that it is not the
case of the plaintiff in O.S.No. 5084/2015 that Late
Chinnaswamy has got her name entered in the service
records to denote her as a nominee.

O.S. No.5084/2015,

23. It is further significant to note that the pursuant to the orders passed by this court in P&SC.NO. 222/2015(O.S.NO. 1962/2019) , the service records of Late Chinnaswamy was summoned from the office of the first respondent/defendant no.2 and certified copies of the service records were submitted on 18.7.2024. It is noted the Late Chinnaswamy had nominated first defendant as his nominee on 7.3.1994 for the purpose of General Provident Fund, Death cum Retirement Gratuity and for the benefits under the Central Government Employees Group Insurance Scheme and evidently none of these records are disputed by the plaintiff . It is also not her case these nominations were in fact made in her favour as her name is also Lakshmamma, Therefore there is no iota of evidence to prove the factum of marriage of the plaintiff with Late Chinnaswamy. However even if it is held the the plaintiff has proved the factum of marriage, the alleged marriage of the plaintiff in in breach of Section5 (1) of the

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

Hindu Marriage Act which mandates that neither party to the marriage should have a spouse living at the time of marriage. The plaintiff cannot be regarded as a legally

wedded wife of Late Chinnaswamy as the alleged marriage of the plaintiff has taken place during the subsistence of the marriage of first defendant with Chinnaswamy.

24. Therefore, in the absence of any material evidence, the plaintiff has failed to prove that she is the legally wedded wife of Sri Chinna Swamy. On the other hand, the defendant No.1 has proved that she is the legally wedded wife of Sri Chinna Swamy as the relationship of 1st defendant with Sri Chinna Swamy is not at all disputed by the plaintiff. Thus, in the absence of proof of relationship of marriage. the claim to award all service benefits and FD amount would not arise. If a man and woman cohabit as husband and wife for a long duration, one can draw a presumption in their favour that they were living together

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

34

as a consequence of a valid marriage but such presumption shall not be applicable when it is an admitted case of the plaintiff that there was a valid marriage between Chinnaswamy and defendant no.1 as on the date of the alleged marriage of the plaintiff. Therefore the presumption of marriage does not arise against a valid marriage. Even if presumption is made applicable there is no evidence that the plaintiff and Late Chinnaswamy were accepted as married couple by the family and friends. On

the other hand the defendant no.1 has proved sufficient evidence in O.S.No. 1962/2019 to prove her relationship with Chinnaswamy and subsistence of marriage as on the date of death of Chinnaswamy. It is no longer res integra that if a man and woman cohabit as husband and wife for a long duration, one can draw a presumption in their favour that they were living together as a consequence of a valid marriage. This presumption can be drawn under Section 114 of the Evidence Act that states as follows:

35

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

"114. The Court may presume the existence of any fact which it thinks likely to have happened, regard being had to the common course of natural events, human conduct and public and private business, in their relation to the facts of the particular case.

In Mohabbat Ali Khan v. Muhammad Ibrahim Khan And Others, 1929 SCC OnLine PC 21, it was again observing by the Privy Council that:

"....The law presumes in favour of marriage and against concubinage when a man and a woman have cohabited continuously for a number of years....."

25. Even if presumption is made applicable there is no evidence that the plaintiff and Late Chinnaswamy were accepted as married couple by the family and friends over a long period of time and the question of presumption does not arise when it is admitted case of the plaintiff that Late Chinnaswamy was married to first defendant. The Karnataka High Court in W.A.No. 256/2023 dtd

17.11.2023 in Mahalakshamma v. The Secretary and

others has held that amongst Hindus monogamy is not

only an ideal but a legal prescription and therefore

marriage contracted when the first wife is alive cannot be

O.S. No.5084/2015,

O.S. No.1962/2019,

(P & S.C. No.222/2015)

36

taken cognizance by law subject to just exceptions and

further held that recognizing such relations during the

subsistence of first one is detrimental to public interest in

as much as that would facilitate directly or indirectly the

employees contracting the second marriage, which is legally

impermissible. Therefore in view of the aforesaid facts and

in the absence of any statutory rule to establish the even

the second wife married during the subsistence of the first

marriage is entitled for the service benefits, the claim of

the plaintiff in O.S.NO. 5084/2015 cannot be acceded to.

26. It is significant to note that the
petitioner/plaintiff in P&SC NO. 222/2015 converted as

O.S.No. 1962/2019 has produced the following documents;

Ex.P.1 is the genealogy tree which discloses that the

petitioner is the wife of deceased Chinnaswamy, which is

dated 24.04.2015. Ex.P.2 is the Petition filed by the

petitioner in C.Misc.208/2010 against her deceased

O.S. No.5084/2015,

O.S. No.1962/2019,

(P & S.C. No.222/2015)

37

husband under Section 125 Cr.P.C.. Ex.P.3 is the objections filed by the deceased Chinnaswamy. From Ex.P.4, which is the order sheet in CrI.Misc.208/2010 it is established that the petition ended in dismissal as abated on 09.01.2015 as the learned counsel for the petitioner filed a Memo reporting the death of Chinnaswamy on 26.10.2014, who is the husband of the petitioner. Ex.P.5 is the order sheet in P.Misc.7/2002. Ex.P.6 is the payslip of the deceased. Ex.P.7 is the letter written to the petitioner for grant of family pension after the death of Chinnaswamy, Ex.P.8 is the letter written by the petitioner which shows that the petitioner has submitted the documents to the Office of the Additional Commissioner (P&V) for payment of family pension. Ex.P.9 is the letter written by Chief Accounts Officer, Service Tax, Bengaluru stating that there are two persons claiming to be the wives of the deceased and therefore the matter has to be decided in the court of law and the petitioner was asked to submit the Succession Certificate as per Ex.P.10. Ex.P.11 is the legal notice issued to the Commissioner, Service Tax to pay pension and other benefits of the deceased to the petitioner. Ex.P.12 is the reply notice stating that the settlement of benefits of the deceased would be taken on the basis of the

38

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

decision of the court of law. Ex.P.13 is the letter which shows that the petitioner has submitted heir certificate and indemnity bond to the Indian Bank, where the deceased had maintained his accounts. Ex.P.15 also discloses that the bank has taken a decision to settle the claim of the deceased on the basis of the decision of court of law. Ex.P.16 is the LIC premium details of the deceased.

27. From the above documents it is clear that the deceased had maintained accounts in the Indian bank and he had also paid premium towards LIC. But the authorities of the above said bank and LIC have kept their decision pending. From Ex.P.18 it is clear that the

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

39

deceased was working as Havaladar and he was a Central Government employees. Ex.P.21 the Election ID card of the petitioner discloses the husband's name as Chinnaswamy. None of the documents produced by the petitioner/plaintiff in P&SC NO. 222/2015 converted as O.S.No. 1962/2019 have been disputed by the plaintiff in O.S.NO. 5084/2015. The tenor of the cross examination directed to the first defendant and petitioner in P& SC 222/2015 demonstrates that the plaintiff in O.S.No. 5084/2015 was trying elicit that there was no cohabitation

of Chinnaswamy with the petitioner from 2002 till the death of Chinnaswamy but such suggestions are denied and even otherwise mere absence of cohabitation would not prove the dissolution of marriage between the first defendant and Chinnaswamy. There is no material cross examination to disprove the case of the first defendant in P&SC NO. 222/2015. The plaintiff in O.S.NO, 5084/2015 has failed to prove that she is the legally wedded wife of

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

40

deceased Chinnaswamy, however the petitioner/plaintiff in in P&SC NO. 222/2015 converted as O.S.No. 1962/2019 has proved that she is the legally wedded wife of deceased Chinnaswamy and she is entitled to the succeed to the estate of deceased Chinnaswamy. Accordingly Issue No.1 is answered in the Negative, Issue Nos.2 to 4 do not arise for consideration and additional Issue No.1 in the Affirmative; Point No.1 in P&SC 222/2015 i.e. O.S.No. 1962/2015 is answered in the Affirmative.

28. Additional Issue Nos.2 and 3:- The defendants in their written-statement have contended that the plaintiff has not valued the suit properly and sufficient court-fee is not paid. There is no cross-examination by the defendants with reference to the said contentions. Hence, the plaintiff has proved that the suit is valued properly and sufficient

court-fee is paid. Accordingly additional Issue Nos.2 and 3 are answered in the Affirmative.

41

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

29. Issue No.5:- It is the case of the defendant No.2 in O.S.NO.5084/2015 that the suit is not maintainable under Section 80 CPC, but the suit which is not in respect of any act done by the defendant No.2, as a public officer, and in which no act of defendant No.2 is either challenged or sought to be set aside is not a suit to which Section 80 of the CPC can very well apply.

30. In State of Maharashtra and Anr. Vs. Shri Chander Kant (AIR 1977 SC 148), this Court laid down the principle as to when service of notice on the State/defendants under Section 80 of the CPC was necessary. In the said decision, the Court observed as follows :-

"The language of Section 80 of the Code of Civil Procedure is that a notice is to be given against not only the Government but also against the

42

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

Public Office in respect of any act purporting to be done in his official capacity. The Registrar is a

Public Officer. The order is an act purporting to be done in his official capacity.

31. It was held that the suit in that case was to set aside the order made by a Public Officer in respect of an act done in the discharge of his official duties. Therefore, notice under Section 80 of the Code of Civil Procedure was required.

32. From the aforesaid authority, it would be evident that the Court had held that service under Section 80 of the CPC was necessary as in that case, the suit was filed for setting aside an order passed by a public officer in respect of an act done in the discharge of his official duties. In that view of the matter, in that decision, it was held that service of notice under Section 80 of the CPC was necessary and in the absence of that service, the suit must be dismissed. This is not the factual position in this case.

O.S. No.5084/2015,
O.S. No.1962/2019,
(P & S.C. No.222/2015)

43

It is manifest from the records that the defendant no. 2/ authority had not passed any order as a public officer nor the plaintiff in O.S.No. 5084/2015 is asking for setting aside any order passed by the defendant no.2 as a public officer in respect of any act done in the discharge of his official duties and therefore the mandate of Section 80 CPC is not applicable. However it is noted the defendant no.2 is arraigned as a party to seek a positive direction to pay all

the service benefits to the plaintiff and in that context the defendants have failed to prove that the suit is not maintainable. Therefore issue no. 5 is answered in Negative.

33. Issue Nos.6 and 7:- In view of my findings on Point Nos.1 to 5, I proceed to pass the following:

ORDER

The suit of the plaintiff in O.S.No.5084/2015 is hereby dismissed.

No order as to costs.

O.S. No.5084/2015, O.S. No.1962/2019, Draw decree accordingly.

Further, The petition in P&SC 222/2015 (converted as O.S.No. 1962/2019 as per order dated 07.03.2019) filed by the petitioner under Section 372 of Indian Succession Act, 1925 is hereby allowed.

The petitioner in P&SC 222/2015 i.e. Smt. Lakshmi @ Lakshmamma, W/o Late Chinna Swamy, Aged about 37 years, R/at Konasale Village, Koppa Hobli, Maddur Taluk, Mandya District.

is hereby entitled to succeed to the estate of late Chinnaswamy.

Issue Succession Certificate in the name of Petitioner in P&SC 222/2015 Smt. Lakshmi @ Lakshmamma for claiming :

O.S. No.5084/2015, O.S. No.1962/2019,

(a) The death benefits and pension benefits of deceased Chinnaswamy, inclusive of Provident Fund and Gratuity benefits payable by the first respondent;

(b) All the amount standing to the credit of deceased Chinnaswamy at Indian Bank, Peenya Industrial Branch, Bengaluru; and

(c) The amount deposited in LIC of India under Policy No.611360079.

(Original Judgment shall be kept in O.S.No. 5084/2015 and the copy of the same shall be kept in O.S.No. 1962/2019 (P&SC No.222/2015).

(Dictated to the Senior Shirestedar (Stenographer Grade-I), transcribed and typed by her, corrected, signed and then pronounced by me in the open court, on this the 20th day of December, 2024).

(SUMANGALA CHAKALABBI) XLI Addl. City Civil and Sessions Judge, Bengaluru.

O.S. No.5084/2015, O.S. No.1962/2019, ANNEXURE (IN O.S.No. 1962/2015) I. List of witnesses examined on behalf of :

a) Plaintiff's side:

P.W.1 - Smt. Lakshamma 02.06.2022 PW.2 - Sri Ananta N Hegde 19.04.2024 P.W.3 - Sri Veerabhadraiah N.E.

b) Defendants' side: NIL II. List of documents exhibited on behalf of :

a) Plaintiff's side:

Ex.P.1	--	Photograph	
Ex.P.2	--	Wedding card	
Ex.P.3	--	Death certificate of Chinnaswamy	
Ex.P.4	--	Legal notice dated 17.12.2014	
Ex.P.5	--	Postal receipt	
Ex.P.6	--	Letter dated 01.04.2015	
Ex.P.7	--	Letter from Indian Bank dated 18.05.2015	
Ex.P.8	--	Deposit receipt issued by Indian Bank pertaining to account No. 6175509978	
Ex.P.9	--	Extract of Land and building O.S. No.5084/2015, O.S. No.1962/2019,	

tax register of Chikkabanavara Grama Panchayath, Hesarugatta hobli for the year 2012-2013 Ex.P.10 -- Receipt issued by Gram Panchayath dated 13.05.2015 Ex.P.11 -- Residence certificate issued by Gram Panchayath Ex.P.12 -- Certificate of relationship issued by Gram Panchayath dated 20.11.2014 Ex.P.13 -- Original Ration card of Lakshamma Ex.P.14 -- Rent agreement dated 20.06.2016 Ex.P.15 -- Letter dated

26.12.2014 issued by Chief Accounts Officer, Bengaluru to the Plaintiff Ex.P. 16 -- Original sale deed dated 30.08.2011 executed in favour of Chinnaswamy.

Ex.P. 17 -- Original Adhar Card of PW -1 Ex.P. 18 -- Medical bill issued by Sapthagiri Hospital, Bengaluru Ex.P. 19 -- Two Medical prescriptions and 20 Ex.P. 21 -- 4 Receipts towards purchase to 24 of medicines.

O.S. No.5084/2015, O.S. No.1962/2019, Ex.P. 25 -- Letter dated 01.04.2015 issued by Administrative Officer, Service Tax Office, Bengaluru.

Ex.P. 26 -- Letter dated 10.07.2019 issued by West Commissioner ate, Central Tax , Bengaluru. Ex.P. 27 -- Certified copy of of Petition filed under Section 125 of Cr.P.C. in Crl. Misc. 208/2010 before Maddur Court.

Ex.P. 28 -- Certified copy of order sheet in in Crl. Misc. 208/2010

b)Defendants' side : NIL ANNEXURE IN (P&SC 222/2015) OS 1962/2015 LIST OF WITNESSES EXAMINED ON BEHALF OF PETITIONER/S:

PW-1::Smt. Lakshmi @ Lakshmamma - 02.03.2017 LIST OF DOCUMENTS MARKED ON BEHALF OF THE PETITIONER/S :

Ex.P. 1	Genealogy
Ex.P. 2	Copy of Petition in C.Mis.208/2010
Ex.P.3	Copy of objections to C.Misc.208/2010
Ex.P.4	Copy of order sheet in C.Misc.208/2010

O.S. No.5084/2015,
O.S. No.1962/2019,

Ex.P.5 Cpy of order sheet in {/Mis.7/2002

Ex.P.5(a) Signature of the petitioner Ex.P.6 Pay slip of deceased Chinnaswamy for the month of May 2012 Ex.P.7 Family pension letter issued by Goverment of India, Ministry of Finance Department Ex.P.8 Letter 26.11.2014 by the petitioner Ex.P.9 Letter dated 26.12.2014 Ex.P.10 Letter dated 01.04.2015 Ex.P.11 Legal notice dated 23.04.2015 Ex.P.12 Reply notice dated 18.05.2015 by Office of Additional Commissioner Ex.P.13 Letter from Manager, Indian Bank to the petitioner Ex.P.14 Application form of Indian Bank Ex.P.15 Letter dated 18.05.2015 from Indian Bank Ex.P.16 Letter written to the Manager LIC of India Ex.P.17 Death certificate of Chinnaswamy Ex.P.18 ID Card of deceased Chinnaswamy Ex.P.19 Photograph Ex.P.20 Election ID card of deceased Chinnaswamy Ex.P.21 Election ID card of the petitioner Ex.P.22 Ration card O.S. No.5084/2015, O.S. No.1962/2019, LIST OF

WITNESSES EXAMINED AND DOCUMENTS MARKED ON BEHALF OF THE
RESPONDENTS:

-NIL-

(SUMANGALA CHAKALABBI) XLI Addl. City Civil and Sessions Judge, Bengaluru.

O.S. No.5084/2015, O.S. No.1962/2019,